

**IN THE DISTRICT COURT OF JOHNSON COUNTY, KANSAS
CRIMINAL COURT DEPARTMENT**

STATE OF KANSAS,
Plaintiff,

VS.

**Case No. 10CR2633
Court No. 1**

SCOTT P. MOORE,
Defendant.

**STATE'S RESPONSE TO DEFENDANT'S MOTION FOR RECONSIDERATION OF
DEFENDANT'S OPPOSITION TO STATE'S MOTION TO ADMIT EVIDENCE
PURSUANT TO K.S.A. 60-455**

COMES NOW, the State of Kansas, by and through Erika N. Rasmussen, Assistant District Attorney, and moves this Court to sustain its prior ruling in the State's Motion to Admit Evidence pursuant to K.S.A. 60-455. In support thereof, the State submits the following in response to the Defendant's Motion for Reconsideration:

RESPONSE TO FACTS AS SET FORTH IN DEFENDANT'S MOTION

The State, in its Motion to Admit Evidence Pursuant to K.S.A. 60-455, detailed facts as proffered testimony of the witnesses of the prior sexual misconduct committed by the defendant in 2005 and 2006. The following facts are in response to the defendant's Motion filed on June 26, 2012, and are meant to only supplement the written proffered testimony by the State in its Motion filed on November 29, 2011, and orally proffered at the Court hearing on February 21, 2012. The facts previously set forth by the State remain the same.

1. 2005 SEXUAL MISCONDUCT

In November, 2005, the defendant was a cabin leader at a church retreat that

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occurred in Linn County, Kansas, when two boys, J.G. and K.H., in the defendant's cabin disclosed that they had been touched in the middle of the night. The boys disclosed this the day after it occurred; however, they later described immediate actions by leaders as the retreat, such as Lee Jost, that showed disbelief and a lack of concern for the disclosure. These actions included Jost holding a meeting with the cabin where he told them that their story was "shaky" and giving a sermon that night about people who spread rumors.

As noted in the defendant's Motion, the United Methodist Church of the Resurrection (COR) did not contact police when the boys reported that they had been touched; instead, Nancy Moore and Randy Meyer from COR conducted an investigation and prepared notes of interviews conducted during their investigation. Later, in 2006, after law enforcement was notified of additional sexual misconduct by the defendant, officers contacted J.G. and K.H. and requested written statements. Furthermore, in anticipation of this Motion and the jury trial in this matter, Detective Fizer from the Overland Park Police Department interviewed by K.H. and J.G. in 2012. These reports were forwarded to defense counsel as discovery on the day they were received by the State. The statements of J.G. and K.H. are as follows:

a. J.G.'s statements

i. 2005 interview with COR officials

According to the notes from COR's investigation by Moore and Meyer, J.G. reported that he woke up and noticed some type of stimulation to the head of his penis. He said that his penis had moved vertically into the waistband of his underwear with the head of the penis protruding over the waistband. He then saw someone squatting at his

bedside. He could see the outline of the person, but not a face. The person got up, and went towards the door. The person then came back into the room minutes later, squatted by a nearby bed, and shined a flashlight. J.G. then sensed the person reach toward him so J.G. turned his body away from the person. The person then shined his flashlight onto the bunk bed directly about J.G., but J.G. did not see the person's face. The person left, but J.G. did not fall asleep after the first disturbance. He removed his bed covering to below his waist to see if the person would return and try to touch him. A person later returned and shined a flashlight on J.G., whispering, "Yes," as he did so. J.G. stirred and the person left the room. At that time, another camper stirred and asked, "Is that you Scott?" The defendant immediately entered the room and said, "Yes."

Other notes typed by Lee Jost with COR indicated that he talked to J.G. while at the COR retreat. During that interview, Jost said J.G. thought the person in the room was an adult because he could see the person was big. He then indicated that by "big," he meant having a stocky build. J.G. also reported that he thought he had been touched because his genitals were in an awkward position when he awoke.

ii. 2006 written statement

Though records indicate that all of the boys involved in the 2005 sexual misconduct incident completed written statements when the defendant was investigated by law enforcement in 2006, the State has been unable to locate a written statement made by J.G. about the 2005 sexual misconduct.

iii. 2012 interview with Detective Fizer

Detective Fizer contacted J.G. in 2012 regarding the events that occurred at the

2005 COR retreat. J.G. said he previously provided a written statement, documenting this incident; however, he recalled that he had woken up at the camp to find someone touching him in the private area. When J.G. rolled over, the person stood up. J.G. pretended to be asleep, and the person subsequently shined a flashlight. J.G. said "Scott," and the person stood and turned off the flashlight.

b. K.H.'s statements

i. 2005 interview with COR officials

Notes from COR's investigation by Moore and Meyer, indicate that K.H. was interviewed by the pair in 2005. During the interview, K.H. reported that he was awakened by the sound of the door to the cabin room hitting the wall, and a flashlight was subsequently shined in his face. Sometime during the night, he then saw a hand in his sleeping bag around his crotch area, and a light was shined in his face. He was able to see an outline of the person, but not a face. He described the outline as fairly tall, indicating that the person was tall enough to see over the top bunk. He further reported that the figure was bulky, but not huge.

Notes typed by Lee Jost with COR indicated that he talked to K.H. while at the COR retreat. During that interview, Jost noted that K.H. said the figure was about his height, which was perhaps 5'8". Jost noted that K.H. said the person was not large and was wearing a t-shirt with the words "Night Stalker" on the back.

ii. 2006 written statement

In 2006, K.H. completed a written statement regarding the 2005 sexual misconduct. In the written statement, K.H. indicated that he somewhat awoke when he had a flashlight shined in his face in the very dark room. K.H. said he tried to go back to

sleep when he felt his sleeping bag rustle. He looked up to see a man with his hand in his sleeping bag. K.H. did not move, and the man tried to reach further into his sleeping bag, near his crotch. K.H. made a sudden movement. The man then shined a flashlight at K.H.'s face before moving to another area of the room.

iii. 2012 interview with Detective Fizer

Detective Fizer contacted K.H. in 2012. During the interview, K.H. reported that he awoke in his room at the retreat to find a man, hovering over his bed. K.H. said the room was dark, and he saw the man go to another bed where he turned on a flashlight. K.H. believed the man to be the defendant, and he said it appeared the man was searching the bed with a flashlight.

c. Bob Drown's statements

In 2005, Bob Drown was another youth in the aforementioned cabin at the COR retreat. He was interviewed by Jost during the retreat, and he reported that J.G. awoke him after J.G. first saw someone in the room. J.G. reported that the defendant was touching him in his sleep. Drown fell back asleep, but awoke when the defendant came in the room. Drown asked, "Scott, is that you?" The defendant responded affirmatively and said that he heard a scream. He also reported that he believed he saw the defendant squat down between beds in the room.

d. Mark Childress' statements

During an interview with COR officials in 2005, Mark Childress, a cabin leader who shared a room with the defendant at the retreat, confirmed that the defendant did leave their room once to check on some yelling that the defendant allegedly heard. Childress claimed to be a light sleeper and said that he had been awake most of the

night. He admitted that he had not heard any yelling, but said the defendant was only gone for a minute. In 2005, he reported that he "thinks" that there is no way that the defendant did anything.

e. The defendant's statements

During an interview with COR officials, the defendant admitted that he had gone into the rooms where each boy slept and that he had been carrying a flashlight; however, he claimed he only went into the rooms because he thought he heard someone call out. He said that he was outside of his room for a few minutes, but denied touching J.G. or K.H. while there. The defendant confirmed that Bob Drown asked the defendant if it was him when he entered one of the rooms. Records do not indicate that the defendant was ever asked if he had been wearing a t-shirt with the words "Night Stalker" on the back. There is no indication that COR officials requested to review the contents of the defendant's luggage to see if he possessed any such shirt.

2. 2006 SEXUAL MISCONDUCT

A year after the church investigation, the defendant was again allowed to be a cabin leader at the annual church retreat in Linn County, Kansas. At this retreat, 15 year-old teenagers, C.W. and T.C., who were not related to any individuals involved in the previous report, were campers in the cabin in which the defendant was a leader. While at the camp, they too disclosed an incident that was similar to the aforementioned misconduct in 2005. Bob Whisman investigated the report for COR, and contacted several witnesses. Upon conclusion of his investigation, Whisman reported the incident to the Linn County Sheriff's Office, who then had contact with the individuals involved. Furthermore, in anticipation of this Motion and the jury trial in this matter, Detective

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Fizer made contact with C.W. in 2012. The statements of C.W. and T.C. are as follows:

a. C.W.'s statements

i. 2006 interview with COR Investigator, Bob Whisman

Whisman's notes from COR's investigation indicate that C.W. was interviewed and reported that he was asleep on the upper level of a bunk bed in the cabin when he was awakened in the middle of the night on the first night of the retreat after another camper, Ben Gooding went to the restroom. C.W. saw Gooding return. Sometime later, C.W. saw someone enter the room, clicking a flashlight and appearing to look at people sleeping. The person subsequently went to C.W.'s bunk bed where, T.C. was sleeping on the lower level. After what seemed like three or four minutes, C.W. heard what sounding like elastic slapping against skin. The person then stood up near C.W.'s bunk, and C.W. noted that the person's shoulders were above the edge of the bed, which would indicate the person was about 6' tall. The person shined the flashlight onto the lower half of C.W.'s body as C.W. pretended to be asleep. C.W. felt the person's hand begin to reach under the sheet covering the lower half of C.W.'s body. C.W. abruptly sat up in the bed, and the person exited the room quickly. C.W. next heard a voice in the hallway that sounded like the defendant, saying, "I thought I heard something." C.W. wrote a statement for Whisman, detailing what he witnessed during the first night of the retreat.

C.W. also reported to Whisman that he and other boys in the cabin slept with flashlights during the second night of the retreat. During that night, the defendant entered the room and went to T.C.'s bed. T.C. immediately shined his flashlight in the defendant's face and asked him what he wanted. The defendant responded that he

was only coming to check on them.

ii. 2006 written statement

In 2006, C.W. completed a written statement during an investigation by the Linn County Sheriff's Office. He outlined what occurred on the first night of camp in his cabin as he had described it to Whisman. He described waking up three times that night, with the first being the time that Gooding went to the restroom. He said he awoke a second time to see what appeared to be a head swaying in the hallway, though he wrote that this, "could have been just part of my imagination or not." He then fell asleep again. When C.W. awoke the third time, he unequivocally wrote that he observed a person standing near another bunk bed. The figure then came to his bunk bed and squatted or bent over T.C. in the lower bunk for several minutes, occasionally shining a flashlight. C.W. also wrote that he heard the sound of elastic snapping against skin. The person then stood up and directed attention at C.W., shining his flashlight on the lower half of C.W.'s body and putting his hand under C.W.'s sheet before C.W. suddenly sat up. In his statement, C.W. noted that, though he could not see any facial features on the person in the room, the person had the same shape of haircut as the defendant and was approximately the same height as the defendant. He also wrote that, moments after this person left the room, he heard a voice say, "I thought I heard something." C.W. noted that he knew this was the defendant's voice because the defendant was a relatively loud speaker.

iii. 2012 interview with Detective Fizer

Detective Moore interviewed C.W. in 2012, and C.W. reported that he woke up during the retreat to see the defendant hunched over T.C.'s bed. C.W. also recalled

sitting up in bed before the person became startled and hurried out of the room, tripping as he did so. C.W. said he was confident that the person was the defendant due to his body shape. C.W. indicated that quite some time had elapsed since this occurred, and he could not recall many of the details of the 2006 incident, but that he talked to his mother, who reminded him that he previously disclosed that the defendant had a light and was looking over everyone. She also reminded him that he heard the sound of elastic snapping. C.W. said he provided a written statement when the incident occurred and whatever he wrote in that statement was accurate.

b. T.C.'s statements

i. 2006 interview with COR Investigator, Bob Whisman

No documentation can be found of any contact between Whisman and T.C. during COR's investigation.

ii. 2006 written statement

In 2006, T.C. completed a written statement during the Linn County Sheriff's Office investigation. In the written statement, T.C. said that he did not notice what occurred on the first night of the retreat because he was asleep the entire night. T.C. documented that he was sick during the second night of the retreat so he was awake most of the night. During the night, he felt someone poke him on his back. T.C. turned around and shined a flashlight on the person, who he identified as the defendant. The defendant then ran out of the room. T.C. noted that, on the morning following the second night, the defendant apologized for possibly waking the boys the previous evening. He said he had a dream that T.C. was gone. He said he tripped over a bag and then ran out of the room; however, T.C. noted that he did not see the defendant

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trip, and he only saw the defendant run out of the room when T.C. shined a flashlight on him.

iii. 2012 interview with Detective Fizer

Detective Fizer attempted to contact T.C. in 2012 regarding the church retreat in 2006; however, as of the time of this Response, he has been unable to reach T.C.

c. Ben Gooding's statement

Ben Gooding, a camper in the defendant's cabin in 2006, completed a written statement during the Linn County investigation. In his statement, Gooding noted that, on the first night of the retreat, he saw a tall person in the room. The person first shined a flashlight on C.W. The person then bent down and shined the light on T.C. After that, the person again stood and shined the light on C.W. When C.W. started to stir, the person turned off the flashlight and turned to leave. At that time, Gooding was able to identify the person as the defendant.

With respect to the second night of the retreat, Gooding wrote that he woke several times that night to find the door to their room had been opened. The following morning, the defendant told the boys that he had heard something in their room and had gone into the room. The defendant said he saw everyone in bed except for T.C. and that he went over and began to feel T.C.'s bed to see if anyone was inside. The defendant also told them that he realized T.C. was in bed and started to leave the room. The defendant told them that he tripped over a bag on his way out so he crawled out of his room. Gooding noted, however, that there were no bags in the middle of the floor.

d. Parker Rossier's statement

Parker Rossier, a camper in the defendant's cabin in 2006, completed a written

statement during the Linn County investigation. Rossier, who was sleeping in another room in the cabin, reported that he had gotten up to use the restroom during the first night of the retreat. As he was headed back to his room, Rossier saw the defendant coming from the corridor near the room in which T.C. and C.W. were housed. Rossier wrote that the defendant told Rossier that he had heard a noise. Rossier thought nothing of it, but learned the following morning that the defendant had been in T.C. and C.W.'s room. Rossier also learned that there had been a similar incident in 2005.

With respect to the second night of the retreat, Rossier's written statement indicated that he did not see or hear anything unusual. Rossier heard that the defendant had come into T.C. and C.W.'s room that night as well and that the defendant ran out of the room after T.C. shined a flashlight on him. The following morning, Rossier heard that the defendant claimed that he went into the room the previous night because he had a dream that T.C. left the cabin.

e. Joey Wilson's statement

In 2006, Joey Wilson was a fellow cabin leader with the defendant at the COR retreat. In an e-mail sent to the investigating detective during the Linn County Sheriff's Office investigation, Wilson noted that he learned that the defendant had previously taught many of the boys in a bible study and that he had taught from a book on sexuality. From that, Wilson personally observed the defendant engaging in sexual jokes and innuendos with the boys in their cabin, which Wilson felt were very inappropriate. Wilson further recalled the defendant telling him on one morning during the retreat that he had a dream that one of the boys was missing from his room. The defendant told Wilson that he went into the room, saw what appeared to be an empty

sleeping bag, and reached out to touch it. The defendant told Wilson that the boy then rolled over, and that the defendant then realized he was there.

RESPONSE TO CONCLUSIONS AND DISCREPANCIES SET FORTH IN DEFENDANT'S MOTION

In his Motion for Reconsideration, the defendant detailed a "conclusion" regarding each of the 2005 and 2006 incidents of sexual misconduct. He then goes on to list "Discrepancies" between the two incidents. To address these conclusions and issues set forth by the defendant, the State would note the following:

1. RESPONSE TO DEFENDANT'S CONCLUSION OF THE 2005 INCIDENT

As set forth in the defendant's Motion, neither J.G. nor K.H. was able to positively identify the defendant as the person in their room because it was dark in the room. It should be noted, though, that the defendant and another camper confirm that the defendant had gone into the rooms of J.G. and K.H. with a flashlight. Contrary to the defendant's Motion, from the inception of the investigation, J.G. has consistently maintained that he awoke when he felt stimulation to his penis. He then found the head of his penis protruding from the waistband of his clothing. When recently interviewed, J.G. confirmed that he awoke that night to someone touching his "private area." While K.H. did not report that he felt someone actually grab his penis, he does report that he felt a hand in his sleeping bag near his crotch. The hand continued to advance towards his crotch until K.H. stirred.

In his Motion, the defendant states that J.G. and K.H. provided inconsistent descriptions of the person involved in the 2005 incident of sexual misconduct. Though some of the descriptive terminology utilized by the boys is vague and could be subject to interpretation, it should be noted that both boys have described the person as tall and

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"stocky" or "bulky." Once again, the defendant admitted that he had gone into the rooms of J.G. and K.H. with a flashlight. Finally, Childress' personal opinion regarding the misconduct is irrelevant.

2. RESPONSE TO DEFENDANT'S CONCLUSION OF THE 2006 INCIDENT

In his Motion, the defendant correctly notes that C.W. does not claim that he was touched in a sexual manner; however, C.W. does see a person reaching under the sheet that was covering the lower portion of his body. The hand only stopped advancing when C.W. abruptly sat up. C.W. said he could not identify the person's facial features; however, the person had the same build as the defendant, and he heard the defendant's voice in the hall moments after the person left the room.

With respect to T.C., he said he was asleep on the first night of the COR retreat, and he did not awake at all. This was the night that C.W. observed the person bent over T.C. for several minutes when C.W. heard the sound of elastic slapping against skin. The defendant's Motion correctly notes that T.C. said he felt someone poke him on the second night of the retreat. T.C. then immediately turned his flashlight on the person, whom he identified as the defendant. Without saying anything, the defendant made a hasty exit from the room.

Though they did not personally see the defendant touching either C.W. or T.C., witnesses Parker Rossier and Ben Gooding confirm that the defendant was in and near the bedroom of T.C. and C.W. in the middle of the first night of the retreat. Gooding saw the defendant in the room, shining a flashlight on both boys. Rossier saw the outside of T.C. and C.W.'s room as the defendant was exiting.

3. RESPONSE TO DEFENDANT'S STATEMENT REGARDING DISCREPANCIES BETWEEN THE 2005 AND 2006 INCIDENT

Once again, contrary to the defendant's motion, J.G. and K.H. did provide descriptions of the person in their room in 2005. Though the boys were not able to identify the defendant by his face, they did provide descriptions that were consistent with his physical appearance. Furthermore, the defendant admitted that he had gone into the room of the boys with his flashlight. In 2006, C.W., Rossier, and Gooding, all saw the defendant in and around C.W. and T.C.'s room on the first night when the man reached under the sheet of C.W. after spending several moments bent over T.C.'s bed. On the second night, T.C. immediately reacted when he was poked in the back. He shined a flashlight at the person who touched him and identified the person as the defendant. The identity of the defendant as the person in the room of the boys in 2005 and 2006 has been sufficiently established.

In his Motion, the defendant claims that Mark Childress provides him with a "rather reliable alibi" on the night of the 2005 sexual misconduct when Childress reported that the defendant left the room for less than a minute. The defendant, however, fails to note that, by his own admission, he left his bedroom for a few minutes. The defendant further placed himself in the room of J.G. and K.H., and he acknowledged that he had a flashlight with him when he went inside.

In his Motion, the defendant asserts that none of the boys in 2005 or in 2006 actually felt someone touching them inappropriately. The following should be noted regarding the defendant's brief descriptions of each boy's statement:

- (1) 2005 - J.G. has confirmed that he felt someone touching his penis.
- (2) 2005 - K.H. reported that he felt a hand in his sleeping bag near his crotch on

the same night that J.G. reported that his penis had been touched.

(3) 2006 – C.W. did report that he saw a head swaying earlier in the night, which could have been a figment of his imagination; however, in his written statement, he unequivocally documented that, on the first night of the retreat, he heard the sound of elastic slapping when a person was standing over T.C. The person then directed his attention to C.W. and began reaching under the sheet that covered the lower portion of C.W.'s body.

(4) 2006 – T.C. reported that he was asleep the first night of the retreat and did not wake up. On the second night, he slept with a flashlight, which C.W. attributes to the boys discussion of the previous night's events. It was on that night that T.C. was poked on the back. Before he was touched any further, T.C. turned on his flashlight and identified the defendant as the person who touched him.

**RESPONSE TO DEFENDANT MEMORANDUM OF LAW IN SUPPORT OF
DEFENDANT'S MOTION FOR RECONSIDERATION**

The Court previously had the opportunity to review the State's Motion to Admit Evidence Pursuant to K.S.A. 60-455, and it held that some evidence of prior sexual misconduct would not allowed to be used at a trial in the present matter. The Court, however, had the opportunity to review the applicable case law, and, after analysis, determined that evidence of the 2005 and 2006 sexual misconduct was admissible.

The evidence of the defendant's previous sexual misconduct is admissible under K.S.A. 60-455(b) and (d).

1. The evidence is admissible pursuant to K.S.A. 60-455(b).

The evidence in question is admissible under K.S.A. 60-455(b) because it is

relevant to prove opportunity, identity, lack of mistake or accident, and plan. For evidence to be admissible under subsection (b), the trial court must determine that (1) the evidence is relevant to prove a material fact, (2) the material fact is in dispute, and (3) the probative value of the evidence outweighs the prejudicial effect. State v. Gunby, 282 Kan. 38, 48, 144 P.3d 64 (2006). As previously documented, when evidence of a defendant's prior bad acts is offered to prove the identity of the defendant, it is only necessary that the evidence show sufficient facts and circumstances of the other crime to produce a reasonable inference that the defendant committed both criminal offenses. State v. Bly, 215 Kan. 168, 177, 523 P.2d 397 (1974). The State has done so in the present case, and the State shown how the evidence is relevant to prove plan and modus operandi because the prior sexual misconduct and the present crime share such markedly distinctive characteristics that amount to a scheme that could have only been carried out by the same person. Due to the many striking similarities between the prior sexual misconduct and the crime with which the defendant is currently charged. See State v. Prine, 287 Kan. 713, 735, 200 P.3d 1 (2009). Furthermore, the State has also described how this evidence is relevant to prove opportunity and lack of mistake or accident. Due to the defendant's statements and actions towards N.M.K., all of these facts are at issue in the present case. The probative value of the evidence also clearly outweighs any prejudicial effect.

2. The evidence is admissible pursuant to K.S.A. 60-455(d).

Evidence of the defendant's previous sexual misconduct is also admissible pursuant to K.S.A. 60-455(d), an adaptation of the Federal Rules of Evidence (F.R.E.) 413 and 414, which have withstood constitutional challenges in federal courts. In

upholding the constitutionality of these provisions, the United States Court of Appeals for the Tenth Circuit relied upon the application of the balancing test of F.R.E. 403 to a trial court's determination of the admissibility of other crimes evidence pursuant to F.R.E. 413 and 414. See United States v. Enjady, 134 F.3d 1427 (10th Cir. 1998). The same balancing test still exists for evidence sought to be admitted under K.S.A. 60-455(d) by the reference to K.S.A. 60-445, so this provision is constitutional. The Kansas Court of Appeals recently reviewed K.S.A. 60-455(d) in an unpublished opinion in State v. Young. Appeal No. 102, 121, 2012 Kan.App.Unpub. LEXIS 91 (February 3, 2012). In its opinion, the Court stressed the importance of the balancing test provided for in K.S.A. 60-455(d), and it indicated that the provision would be unconstitutional if the requirement of a balancing test were lacking. 2012 Kan.App.Unpub. LEXIS 91, 41. Because a court must determine if the probative value outweighs the risk for undue prejudice pursuant to the statute, K.S.A. 60-455(d) is constitutional.

The Young Court noted that K.S.A. 60-455(d) essentially lawfully permits the admission of any relevant evidence, including propensity evidence, against defendants charged with certain sex crimes. 2012 Kan.App.Unpub. LEXIS 91, 41. The Court noted that, other than relevance, the only other key factor to consider in a trial court's determination of the admissibility of such evidence is whether the probative value outweighs the potential for undue prejudice. 2012 Kan.App.Unpub. LEXIS 91, 43-44. Under K.S.A. 60-455(d), there need not be a dispute regarding the issue that the evidence is relevant to prove. Thus, in the present case, the Court only needed to find that the evidence was relevant and that its probative value outweighed the potential for undue prejudice. The Court appropriately did so when it previously ruled that evidence

of the 2005 and 2006 sexual misconduct was admissible at the trial in the present case.

3. The evidence is admissible even though the defendant was never charged with a crime in the previous matters.

Though the misconduct disclosed in 2005 was not reported to law enforcement, the misconduct in 2006 was reported to the Linn County Sheriff's Office. It investigated the report and submitted the results of its investigation to the Linn County Attorney's Office for charging consideration. The Linn County Attorney declined to file charges, as the defendant notes this in his Motion. The Kansas Courts, however, have stressed that evidence of a prior offense can be admissible under K.S.A. 60-455 even if the defendant has not been charged or convicted of the offense. Bly, 215 Kan. at 177.

In his Motion, the defendant also points out that he passed a polygraph examination by a privately-retained examiner. This fact is irrelevant. Polygraph examinations are not a reliable indicator of truthfulness, and the Kansas Courts have long held that the results of a "lie detector" examination are inadmissible as evidence at a trial. See State v. Lowry, 163 Kan. 622, 185 P.2d 147 (1947). Similarly, the results of a polygraph examination should not be considered by this Court in determining the admissibility of evidence of prior sexual misconduct.

CONCLUSION

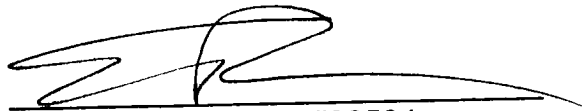
This Court previously held that evidence of the defendant's sexual misconduct in 2005 and 2006 is admissible under both subsection (b) and the newly adopted subsection (d) of K.S.A. 60-455, which relaxed the admissibility requirements of prior sexual misconduct evidence in child sexual abuse cases. This was based upon the proffer of evidence by the State, which has not changed and has only been expanded upon in this Response to ensure that the Court is accurately apprised of all of the facts

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surrounding the 2005 and 2006 incidents of sexual misconduct. Similarly, the law upon which the Court relied when ruling on the State's Motion has not changed. The statutory provisions of K.S.A. 60-455 have remained, and the Kansas Appellate Courts has not issued any opinions dramatically changing their interpretation of said statute. Thus, there is no new basis upon which this Court should now reverse its previous ruling.

WHEREFORE, the State of Kansas respectfully requests that this Court to sustain its prior ruling in the State's Motion to Admit Evidence pursuant to K.S.A. 60-455, and deny the Defendant's Motion for Reconsideration.

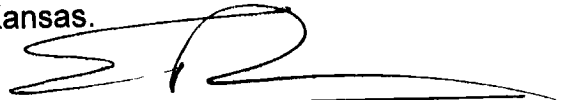
Respectfully Submitted,



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NOTICE OF HEARING

Please take notice that hearing on the above and foregoing Motion shall be held on **Wednesday, the 18th day of July, 2012, at 3:45 p.m. in Court Number 1** of the District Court of Johnson County, Kansas.



Erika N. Rasmussen #22584

CERTIFICATE OF SERVICE

I hereby certify that a true copy of the above and foregoing Motion was faxed to (816)221-5236 to Kevin Regan, Attorney for the Defendant, on the 16th day of July, 2012.



Erika N. Rasmussen #22584

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